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RAJASTHAN APO MAINS TEST SERIES 2026

Test No. 03 — Paper-I : Law

Protection of Children from Sexual Offences Act, 2012

MODEL ANSWER KEY

Date : 10 October 2026

Total Questions : 15

NOTE TO CANDIDATES

1. Each answer below opens with the proposition for which the question asks, and then sets out the governing provision of the Protection of Children from Sexual Offences Act, 2012. The section is cited in brackets where it is relied upon.
2. Answers to the 5-mark questions are to be written in 30 words and to the 10-mark questions in 75 words. The model answers are set out at greater length so that every element of the provision is visible; in the examination, retain the proposition and the section, and compress the rest.
3. Marks are awarded for the correct provision, its essential ingredients and the quantum of punishment or period prescribed, and not for length.

(Q.No. 1 to 10)

Note : Each question carries 5 marks.

1. **Does a digital or computer-generated image which is not of an actual child fall within 'child pornography' under the Protection of Children from Sexual Offences Act, 2012? State the provision.** [5]

Ans. Yes, it does. The definition is not confined to depictions of real children. It covers any visual depiction of sexually explicit conduct involving a child, and expressly takes in a photograph, video, digital or computer generated image indistinguishable from an actual child, as well as an image created, adapted or modified but appearing to depict a child (Section 2(1)(a)).

2. **State the provision as to the punishment for penetrative sexual assault committed upon a child below sixteen years of age, and the purpose for which the fine imposed is to be utilised.** [5]

Ans. Where the victim is below sixteen years the punishment is imprisonment of not less than twenty years, which may extend to imprisonment for life, and life here means imprisonment for the remainder of that person's natural life, together with fine (Section 4(2)). The fine imposed under sub-section (1) must be just and reasonable, and is payable to the victim to meet medical expenses and rehabilitation (Section 4(3)).

3. **In what circumstances does penetrative sexual assault committed by a police officer amount to aggravated penetrative sexual assault under the Protection of Children from Sexual Offences Act, 2012?** [5]

Ans. A police officer commits the aggravated offence where he commits penetrative sexual assault on a child within the limits of the police station or premises at which he is appointed; in the premises of any station house to which he is appointed, whether or not within the police station; in the course of his duties or otherwise; or where he is identified as a police officer (Section 5(a)).

4. **Sexual harassment upon a child is committed only where the person acts 'with sexual intent'. How is the question of sexual intent to be determined? State the provision.** [5]

Ans. Sexual intent is neither defined by the statute nor presumed as a matter of law. It is left to be gathered from the proved facts of each case, the Act declaring expressly that any question which involves sexual intent shall be a question of fact (Explanation to Section 11). The Special Court may additionally presume the existence of the requisite culpable mental state (Section 30).

5. **State the provision as to the punishment for storage of pornographic material involving a child for a commercial purpose, and distinguish it from storage coupled with failure to delete, destroy or report.** [5]

Ans. Storage or possession for a commercial purpose attracts imprisonment of not less than three years extending to five years, or fine, or both on first conviction, rising to not less than five years extending to seven years with fine on a subsequent conviction (Section 15(3)). Storage coupled with failure to delete, destroy or report attracts fine alone — five thousand rupees, and ten thousand on a subsequent offence (Section 15(1)).

6. **When is a person said to 'instigate' the doing of an offence, and when is a person who transports a child by abuse of a position of power said to aid it? State the provisions.** [5]

Ans. A person instigates an offence where, by wilful misrepresentation or wilful concealment of a material fact he is bound to disclose, he voluntarily causes or procures a thing to be done (Explanation I to Section 16). Whoever employs, harbours, receives or transports a child by threat, force, coercion, fraud, deception or abuse of power, or by payments obtaining the consent of a person having control, aids that act (Explanation III).

7. **Is a child liable to punishment for failure to report an offence, or for making a false complaint or providing false information, under the Protection of Children from Sexual Offences Act, 2012? State the provisions.** [5]

Ans. A child is not liable in either case. The provision punishing failure to report is expressly made inapplicable to a child (Section 21(3)), and where a false complaint has been made or false information given by a child, no punishment whatever is to be imposed upon such child (Section 22(2)). The Act instead punishes an adult who falsely complains against a child (Section 22(3)).

8. **State the provision as to the place at which, and the police officer by whom, the statement of a child is to be recorded, and the restriction upon detention of a child.** [5]

Ans. The statement is to be recorded at the residence of the child, or where he usually resides, or at a place of his own choice, and as far as practicable by a woman police officer not below the rank of sub-inspector (Section 24(1)), who shall not be in uniform (Section 24(2)). No child may be detained in the police station in the night for any reason (Section 24(4)).

9. **In respect of which offences does the Special Court presume that the accused has committed the offence? What standard of proof must the accused meet to displace a presumption of culpable mental state?** [5]

Ans. The presumption does not run across the Act. It operates only where the accused is prosecuted for committing, abetting or attempting to commit an offence under Sections 3, 5, 7 and 9, when the Court shall presume he did so unless the contrary is proved (Section 29). To displace a presumption of culpable mental state he must satisfy the Court beyond reasonable doubt, preponderance of probability being insufficient (Section 30(2)).

10. **Where a question arises before the Special Court whether a person is a child, how is it to be determined, and what is the effect of subsequent proof that the age so determined was incorrect?** [5]

Ans. The question is to be decided by the Special Court itself, after satisfying itself about the age of that person, and it must record in writing its reasons for the determination (Section 34(2)). Should it later be proved that the age so determined was not the correct age, the order does not thereby fail: no order is deemed invalid merely upon that ground (Section 34(3)).

(Q.No. 11 to 15)

Note : Each question carries **10** marks.

11. **Distinguish between ‘sexual assault’ and ‘aggravated sexual assault’ and state the punishment for each. Is skin-to-skin contact necessary to constitute sexual assault? Refer to *Attorney General for India v. Satish*, (2022) 5 SCC 545.** [10]

Ans. Sexual assault is the touching, with sexual intent, of the vagina, penis, anus or breast of the child, or making the child touch those of the offender or another, or any other act with sexual intent involving physical contact without penetration (Section 7), punishable with three to five years and fine (Section 8). The offence becomes aggravated by reason of the offender’s office or relationship — a police officer, member of the armed or security forces, public servant, staff of a jail, remand or protection home, hospital or educational or religious institution, a relative — or where it is committed by a gang (Section 9), and is then punishable with five to seven years and fine (Section 10).

Skin-to-skin contact is not necessary. In *Satish* the Supreme Court set that view aside, holding that the gravamen of the offence is sexual intent and that a narrow construction would defeat the Act’s object.

- 12. What suggestions have been made by the Supreme Court in *Just Rights for Children Alliance v. S. Harish and others*, A.I.R. 2024 S.C. 5531 regarding Section 15 of the Protection of Children from Sexual Offences Act, 2012? Discuss. [10]**

Ans. The Court restored a prosecution which the High Court had quashed, and read Section 15 as creating three distinct offences rather than one, each graded by the mental element shown by the act — storage or possession with failure to delete, destroy or report (sub-section (1)); storage for transmitting, propagating, displaying or distributing (sub-section (2)); and storage for a commercial purpose (sub-section (3)). The sub-section charged must therefore be identified. Possession was held to include constructive possession, so that viewing material over which the accused has control may amount to possession, the presumption of culpable mental state applying (Section 30).

Its suggestions were that Parliament substitute ‘child sexual exploitative and abuse material’ for ‘child pornography’; that courts cease using the latter expression; that an expert committee be constituted for health and sex education and awareness of the Act; and that the reporting obligations of intermediaries be enforced.

- 13. Who is bound to report the commission of an offence under the Protection of Children from Sexual Offences Act, 2012, and to whom? State the obligation of media, studio and photographic facilities to report cases, and the procedure to be followed by the media. [10]**

Ans. The duty is cast upon everyone, the child included: anyone apprehending that an offence is likely to be committed, or knowing that one has been committed, must inform the Special Juvenile Police Unit or the local police (Section 19(1)). Where the child needs care and protection, reasons must be recorded and arrangements made, and the matter reported to the Child Welfare Committee and Special Court, within twenty-four hours (Sections 19(5) and 19(6)). No liability attaches to information given in good faith (Section 19(7)).

Personnel of media, hotel, lodge, hospital, club, studio or photographic facilities who come across material sexually exploitative of a child must likewise report it (Section 20).

The media may not disclose the child’s identity save by permission of the Special Court, recorded in writing; the publisher or owner is jointly and severally liable, and contravention draws six months to one year, or fine, or both (Section 23).

- 14. Which courts are competent to try offences under the Protection of Children from Sexual Offences Act, 2012? Explain the procedure and powers of the Special Court, including its power to direct payment of compensation. [10]**

Ans. For each district the State Government, in consultation with the Chief Justice of the High Court, designates a Court of Session to be the Special Court; one already notified as a Children’s Court under the Commissions for Protection of Child Rights Act, 2005 is deemed to be such (Section 28(1)). The Code of Criminal Procedure applies, the Court being deemed a Court of Session (Section 31), and a Special Public Prosecutor of not less than seven years’ practice is appointed for every such Court (Section 32).

It takes cognizance without committal; questions to the child are put through the Court; the child is not called repeatedly; aggressive questioning is forbidden; and the child’s identity is not

disclosed (Section 33). It may also direct compensation for physical or mental trauma or immediate rehabilitation (Section 33(8)), and it has all powers of a Court of Session (Section 33(9)).

- 15. Explain the provisions made for the protection of the child at the trial — the period for recording of evidence and disposal of the case, the child not seeing the accused while testifying, trial in camera, and the right to take assistance of a legal practitioner. [10]**

Ans. The Act sets an outer limit upon delay: the child's evidence must be recorded within thirty days of the Special Court taking cognizance, and the trial completed, as far as possible, within one year (Section 35).

The child must not be exposed in any way to the accused while evidence is recorded, though the accused must be able to hear the statement and communicate with his advocate; for this the Court may use video conferencing, single visibility mirrors, curtains or any other device (Section 36).

The trial is held in camera and in the presence of the parents or a person whom the child trusts; where the child must be examined elsewhere, a commission issues under Section 284 of the Code (Section 37).

The family or guardian may engage counsel of their choice, and if unable to afford one, the Legal Services Authority shall provide a lawyer (Section 40).

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